

1 **SENATE FLOOR VERSION**

2 April 7, 2026

3 ENGROSSED HOUSE
4 BILL NO. 2696

By: Ford of the House

5 and

6 Rader of the Senate

7
8 An Act relating to the Oklahoma Open Records Act;
9 amending 51 O.S. 2021, Section 24A.16, as amended by
10 Section 1, Chapter 86, O.S.L. 2024 (51 O.S. Supp.
11 2025, Section 24A.16), which relates to educational
12 records; requiring schools to release certain records
13 to parents, guardians, or adult students; requiring
14 records to be provided in a timely manner; mandating
15 that certain record requests be provided for free;
16 specifying that certain information cannot be
17 omitted; providing examples of certain records;
18 amending 51 O.S. 2021, Section 24A.28, as amended by
19 Section 1, Chapter 325, O.S.L. 2023 (51 O.S. Supp.
20 2025, Section 24A.28), which relates to confidential
21 information; adding certain cybersecurity information
22 to list of confidential information; and providing an
23 effective date.

24 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 51 O.S. 2021, Section 24A.16, as
amended by Section 1, Chapter 86, O.S.L. 2024 (51 O.S. Supp. 2024,
Section 24A.16), is amended to read as follows:

Section 24A.16. A. Except as set forth in subsection B of this
section, public educational institutions and their employees may
keep confidential:

1 1. Individual student records;

2 2. Teacher lesson plans, tests and other teaching material;

3 3. Personal communications concerning individual students; and

4 4. Any contract for use of a student athlete's name, image, or
5 likeness disclosed to a postsecondary institution pursuant to the
6 Student Athlete Name, Image and Likeness Rights Act.

7 B. If kept, statistical information not identified with a
8 particular student and directory information shall be open for
9 inspection and copying. Except as provided in subsection C of this
10 section, each educational institution may choose to designate
11 specific information which shall be classified as directory
12 information for students attending the educational institution. In
13 accordance with the Family Educational Rights and Privacy Act,
14 Section 1232g of Title 20 of the United States Code and Part 99 of
15 Title 34 of the Code of Federal Regulations, "directory information"
16 includes a student's name, address, telephone listing, date and
17 place of birth, major field of study, participation in officially
18 recognized activities and sports, weight and height of members of
19 athletic teams, dates of attendance, degrees and awards received,
20 and the most recent previous educational institution attended by the
21 student. Any educational agency or institution making public
22 directory information shall give public notice of the categories of
23 information which it has designated as directory information with
24 respect to each student attending the institution or agency and

1 shall allow a reasonable period of time after the notice has been
2 given for a parent or guardian to inform the institution or agency
3 that any or all of the information designated should not be released
4 without prior consent of the parent or guardian or the student if
5 the student is eighteen (18) years of age or older.

6 C. All educational agencies or institutions which are not the
7 primary custodians of student directory information of students
8 attending the educational institution, but which are allowed to
9 access the information for educational purposes, shall be prohibited
10 from releasing or selling any or all student directory information
11 unless disclosure is authorized by the Family Educational Rights and
12 Privacy Act, Section 1232g of Title 20 of the United States Code and
13 Part 99 of Title 34 of the Code of Federal Regulations, or Section
14 3-168 of Title 70 of the Oklahoma Statutes.

15 D. A public school district may release individual student
16 records for the current or previous school year to a school district
17 at which the student was previously enrolled for purposes of
18 evaluating educational programs and school effectiveness.

19 SECTION 2. AMENDATORY 51 O.S. 2021, Section 24A.28, as
20 amended by Section 1, Chapter 325, O.S.L. 2023 (51 O.S. Supp. 2025,
21 Section 24A.28), is amended to read as follows:

22 Section 24A.28. A. The following information may be kept
23 confidential:
24

- 1 1. Investigative evidence of a plan or scheme to commit an act
2 of terrorism;
- 3 2. Assessments of the vulnerability of government facilities or
4 public improvements to an act of terrorism and work papers directly
5 related to preparing the assessment of vulnerability;
- 6 3. Records including details for deterrence or prevention of or
7 protection from an act or threat of an act of terrorism;
- 8 4. Records including details for response or remediation after
9 an act of terrorism;
- 10 5. Information technology of a public body or public official
11 but only if the information specifically identifies:
 - 12 a. design or functional schematics that demonstrate the
13 relationship or connections between devices or
14 systems,
 - 15 b. system configuration information,
 - 16 c. security monitoring and response equipment placement
17 and configuration,
 - 18 d. specific location or placement of systems, components,
19 or devices,
 - 20 e. system identification numbers, names, or connecting
21 circuits,
 - 22 f. business continuity and disaster planning, or response
23 plans, ~~or~~
- 24

- 1 g. investigative information directly related to security
2 penetrations or denial of services; or
3 h. cybersecurity risk assessments, vulnerability scans,
4 penetration testing results, incident response plans
5 and reports, forensic reports, security audit reports,
6 system or network logs, and cyber threat intelligence
7 shared with other government agencies or through
8 recognized information sharing organizations, to the
9 extent such records could reasonably be expected to
10 facilitate unauthorized access to or disruption of
11 information systems;

12 6. Investigation evidence of an act of terrorism that has
13 already been committed;

14 7. Records received, maintained, or generated by the Oklahoma
15 Office of Homeland Security which include confidential private
16 business information or an individual's private records;

17 8. Records received by the Oklahoma Office of Homeland Security
18 from the United States Department of Homeland Security or records
19 maintained or generated by the Oklahoma Office of Homeland Security
20 involving the United States Department of Homeland Security;

21 9. Records received, maintained, or generated by the Department
22 of Environmental Quality that contain information regarding sources
23 of radiation in quantities determined by the United States Nuclear
24 Regulatory Commission to be significant to public health and safety,

1 by whomever possessed, whether in transit or at fixed sites, when
2 the information could reasonably be expected to have an adverse
3 effect on the health and safety of the public by increasing the
4 likelihood of theft, diversion, or sabotage of the radiation sources
5 or facilities. The information may include but is not limited to
6 information:

- 7 a. from or relating to radioactive material licensees
8 identifying the exact location of the radioactive
9 material,
- 10 b. describing how the radioactive material is secured
11 from unauthorized removal or access when it is in
12 storage,
- 13 c. describing the control and maintenance of constant
14 surveillance of the radioactive material when it is
15 not in storage,
- 16 d. describing specific policies and procedures for
17 actions to physically protect the radioactive
18 material,
- 19 e. identifying possession limits or actual inventories of
20 radionuclides,
- 21 f. containing or describing assessments or analyses that
22 could reveal vulnerabilities,
- 23 g. identifying specific locations of safety and security
24 equipment,

1 h. describing emergency planning, emergency response and
2 fire protection, and

3 i. containing or describing other information that could
4 reasonably be expected to be useful to persons with
5 malevolent intent;

6 10. The names of school district personnel who have been
7 designated to carry a firearm pursuant to Section 5-149.2 of Title
8 70 of the Oklahoma Statutes;

9 11. Information technology of the State Election Board or a
10 county election board which is determined jointly by the Secretary
11 of the State Election Board and the State Chief Information Officer
12 to be technology that could reasonably be expected to be useful to
13 persons with intent to interfere with the conduct of an election,
14 voter registration, or other election processes;

15 12. Records received, maintained, or generated by the Oklahoma
16 Municipal Power Authority established pursuant to Section 24-101 et
17 seq. of Title 11 of the Oklahoma Statutes and in its role as an
18 electric utility regulated by the federal government, related to
19 security plans and procedures including, but not limited to,
20 cybersecurity matters; and

21 13. Risk and vulnerability assessments of school districts
22 conducted pursuant to Section 2 of this act including
23 recommendations to increase security on school district property and
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1 work papers directly related to preparation of the risk and
2 vulnerability assessments.

3 B. The following information shall not be kept confidential:

4 1. Records related to federal grants administered by the
5 Oklahoma Office of Homeland Security or the Department of
6 Environmental Quality;

7 2. Records related to the receipt and expenditure of public
8 funds; or

9 3. Records related to the financial performance or financial
10 administration of the Oklahoma Office of Homeland Security or the
11 Department of Environmental Quality.

12 C. For the purposes of this section, the term "terrorism" means
13 any act encompassed by the definitions set forth in Section 1268.1
14 of Title 21 of the Oklahoma Statutes.

15 D. 1. Public educational institutions may keep confidential
16 campus security plans. An institution or agency may in its
17 discretion release information contained in or related to the campus
18 security plan in order to design or implement the plan.

19 2. Nothing in this subsection shall preclude an institution or
20 agency within The Oklahoma State System of Higher Education from
21 collecting and releasing information relating to campus crime
22 statistics and campus security policies as is required pursuant to
23 the Jeanne Clery Disclosure of Campus Security Policy and Campus
24 Crime Statistics Act, 20 U.S.C. 1092(f).

1 3. For purposes of this subsection, "campus security plan"
2 shall include, but is not limited to, prevention and response
3 procedures to and notification procedures for perceived or actual
4 security threats and incidents on or impacting the campus.

5 SECTION 3. This act shall become effective November 1, 2026.

6 COMMITTEE REPORT BY: COMMITTEE ON JUDICIARY
7 April 7, 2026 - DO PASS
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